

HOUSE BILL NO. 346

INTRODUCED BY P. TUSS, E. ALBUS, S. GIST, S. FITZPATRICK, J. FITZPATRICK

A BILL FOR AN ACT ENTITLED: "AN ACT EXEMPTING DEPARTMENT OF COMMERCE GRANT AND LOAN PROGRAMS FROM REVIEW UNDER THE MONTANA ENVIRONMENTAL POLICY ACT; PROVIDING RULEMAKING AUTHORITY; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Exemption from environmental review. The department is exempt from the provisions of Title 75, chapter 1, parts 1 and 2, when authorizing loans, administering a loan program, or creating a loan program related to microbusiness development pursuant to this part.

NEW SECTION. Section 2. Exemption from environmental review. The department of commerce is exempt from the provisions of Title 75, chapter 1, parts 1 and 2, when authorizing grants, administering a grant program, or creating a grant program related to historic preservation pursuant to this part.

NEW SECTION. Section 3. Exemption from environmental review. The department is exempt from the provisions of Title 75, chapter 1, parts 1 and 2, when authorizing grants, administering a grant program, or creating a grant program related to workforce training pursuant to this part.

NEW SECTION. Section 4. Exemption from environmental review. The department of commerce, the state-tribal economic development commission, and heritage preservation and cultural tourism commissions created as provided in 90-1-162 are exempt from the provisions of Title 75, chapter 1, parts 1 and 2, when authorizing grants or loans, administering a grant or loan program, or creating a grant or loan program related to agritourism, heritage and cultural tourism, business investments in historic downtown and commercial areas, Montana-based films, regional development corporations, sites and programs associated with the Lewis and Clark expedition, small businesses, or tourism pursuant to this part.

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2 NEW SECTION. **Section 5. Exemption from environmental review.** The department is exempt
3 from the provisions of Title 75, chapter 1, parts 1 and 2, when authorizing grants or loans, administering a grant
4 or loan program, or creating a grant or loan program related to economic development projects pursuant to this
5 part.

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7 NEW SECTION. **Section 6. Exemption from environmental review.** The department of commerce
8 is exempt from the provisions of Title 75, chapter 1, parts 1 and 2, when authorizing loans, administering a loan
9 program, or creating a loan program related to the Montana wood products industry pursuant to this part.

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11 NEW SECTION. **Section 7. Exemption from environmental review.** The department and the board
12 of housing are exempt from the provisions of Title 75, chapter 1, parts 1 and 2, when authorizing loans,
13 administering a loan program, or creating a loan program related to the financing of housing pursuant to this
14 part.

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16 NEW SECTION. **Section 8. Exemption from environmental review.** The board of housing is
17 exempt from the provisions of Title 75, chapter 1, parts 1 and 2, when authorizing loans, administering a loan
18 program, or creating a loan program related to reverse annuity mortgage loans to elderly citizens.

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20 NEW SECTION. **Section 9. Exemption from environmental review.** The board is exempt from the
21 provisions of Title 75, chapter 1, parts 1 and 2, when authorizing loans, administering a loan program, or
22 creating a loan program related to the veterans' home loan mortgage program.

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24 NEW SECTION. **Section 10. Notification to tribal governments.** The secretary of state shall send
25 a copy of [this act] to each federally recognized tribal government in Montana.

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27 NEW SECTION. **Section 11. Codification instruction.** (1) [Section 1] is intended to be codified as
28 an integral part of Title 17, chapter 6, part 4, and the provisions of Title 17, chapter 6, part 4, apply to [section

1 1].

2 (2) [Section 2] is intended to be codified as an integral part of Title 22, chapter 3, part 13, and the
3 provisions of Title 22, chapter 3, part 13, apply to [section 2].

4 (3) [Section 3] is intended to be codified as an integral part of Title 39, chapter 11, part 2, and the
5 provisions of Title 39, chapter 11, part 2, apply to [section 3].

6 (4) [Section 4] is intended to be codified as an integral part of Title 90, chapter 1, part 1, and the
7 provisions of Title 90, chapter 1, part 1, apply to [section 4].

8 (5) [Section 5] is intended to be codified as an integral part of Title 90, chapter 1, part 2, and the
9 provisions of Title 90, chapter 1, part 2, apply to [section 5].

10 (6) [Section 6] is intended to be codified as an integral part of Title 90, chapter 1, part 5, and the
11 provisions of Title 90, chapter 1, part 5, apply to [section 6].

12 (7) [Section 7] is intended to be codified as an integral part of Title 90, chapter 6, part 1, and the
13 provisions of Title 90, chapter 6, part 1, apply to [section 7].

14 (8) [Section 8] is intended to be codified as an integral part of Title 90, chapter 6, part 5, and the
15 provisions of Title 90, chapter 6, part 5, apply to [section 8].

16 (9) [Section 9] is intended to be codified as an integral part of Title 90, chapter 6, part 6, and the
17 provisions of Title 90, chapter 6, part 6, apply to [section 9].

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19 **NEW SECTION. Section 12. Effective date.** [This act] is effective July 1, 2025.

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